

## 24VECV05351 24VECV05351

County: los-angeles

Division: Civil Law and Motion

Department: B

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Tentative Ruling

Zargaryan v. Sargsyan, Case no. 24VECV05351

Hearing date July 7, 2026

Defendant

Sargsyan's Motion for Sanctions - UNOPPOSED

Plaintiff

Zargaryan sues defendant Sargsyan for defamation. Defendant moves for sanctions pursuant to Code Civ. Proc. §128.5, arguing she is not a proper defendant. Plaintiff did not file opposition.

Per

Code Civ. Proc. §128.5 a court may order a party to pay reasonable expenses, including attorneys' fees, incurred as a result of bad faith or frivolous action or tactics, including filing of a complaint. "Frivolous" means "totally and completely without merit or for the sole purpose of harassing" a party. Civ. Proc. Code §128.5(b). Per section 128.7, "by presenting to the court... a pleading... an attorney... is certifying that to the best of the person's knowledge, information, and belief, formed after" a reasonable inquiry, the pleading is not being presented for an improper purpose, such as to harass or delay and allegations and other factual contentions have evidentiary support or are likely to have evidentiary support. Civ. Proc. Code §128.7(b).

Plaintiff

alleges defendant owned and operated an Instagram social media page that

defamed plaintiff and her husband. Defendant argues: (1) defendant did not own and/or operate the Instagram handle, "lilitfemalecorner;" (2) a screenshot in the complaint suggests defendant's actual Instagram handle is "lilitvoguer;" and (3) plaintiff and counsel failed to provide any reliable source of information or evidence that the claims have any merit. See Compl., para. 14; see also Decl. Sargsyan, paras. 3-4; Decl. Agazaryan, paras. 3-7, exhs. A-B.

Defendant

argues the complaint, which alleges defendant used the Instagram name "lilitfemalecorner" to make defamatory statements, contains photographic evidence of defendant's actual Instagram name "lilitvoguer." See Compl., para. 14. Defendant argues plaintiff failed to produce evidence in support of her claims, despite meet-and-confer efforts by defense counsel. Decl. Agazaryan, paras. 3-7, exhs. A-B.

To

determine whether an action is frivolous, the following objective standard applies: "any reasonable attorney would agree it is totally and completely without merit." *In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 135. Such requirement is met when the action is brought despite knowledge of the facts and law that clearly indicate the defendant has no liability or in the face of a complete lack of evidence to substantiate plaintiff's charges. *Frank Annino & Sons Constr. v. McArthur Rests.* (1989) 215 Cal.App.3d 353, 359.

Defendant's

affidavit under penalty of perjury declares she neither owns nor operates the Instagram handles at issue. Defendant's counsel's affidavit states plaintiff failed to produce competent evidence, either in litigation or meet-and-confer efforts, showing any basis for bringing this lawsuit. Further, following defendant's request for plaintiff to produce supporting evidence, plaintiff and counsel ceased communication. See Decl. Agazaryan, paras. 5-6, exh. A.

Defendant

offers arguments regarding alleged bad faith tactics by plaintiff's counsel Hasic, including alleged falsification of proofs of service. The court declines to address these arguments, as well as references to the Bay Area Legal Aid v. Achievable Solutions, Inc., et al. (Case No. 22CV008464). This motion is unopposed; the court must construe this as an admission that the motion is meritorious.

#### Monetary

sanctions against plaintiff and counsel and terminating sanctions are warranted. Defendant requests \$15,073.10 in attorney's fees and \$595.52 in costs. See Decl. Agazaryan, paras. 10-13, exhs. E-F. Defendant requests additional, unspecified fees and costs in relation to this motion, but the court cannot grant a fee request when no details or amount was presented. The court considers only the request for \$15,073.10 in attorney's fees and \$595.52 in costs.

#### Defendant

requests \$4,453.10 in fees and \$546.90 in costs for December 2025; \$6,570 in fees and \$43.12 in costs for January 2026 and \$4,050 in fees and \$5.50 in costs for February 2026. Decl. Agazaryan, paras. 10-12, exh. E-F. These fees were billed at \$450/hour, which is reasonable. Id. at exhs. E-F. These requests are substantiated by billing records and are awarded. The court awards \$15,073.10 in attorney's fees and \$595.52 in costs against plaintiff and counsel Hasic, joint and several. GRANTED; the complaint is dismissed with prejudice. Sanctions as above, payable within 30 days.